

The Apology

Xenophon

Project Gutenberg

The Apology

Xenophon

A decorative graphic consisting of a large green rectangle with a cyan triangle pointing upwards in the center. The green rectangle is divided into several sections by cyan lines: a vertical line on the left, a vertical line on the right, and a horizontal line near the bottom. The cyan triangle is positioned in the center, with its base on the horizontal line. The text 'Project Gutenberg' is written in white at the bottom right of the green area.

Project Gutenberg

The Project Gutenberg eBook of The Apology

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: The Apology

Author: Xenophon

Translator: Henry Graham Dakyns

Release date: January 1, 1998 [eBook #1171]

Most recently updated: October 29, 2024

Language: English

Other information and formats: www.gutenberg.org/ebooks/1171

Credits: Produced by John Bickers, and David Widger

*** START OF THE PROJECT GUTENBERG EBOOK THE APOLOGY

THE APOLOGY

By Xenophon

Translation by H. G. Dakyns

Xenophon the Athenian was born 431 B.C. He was a pupil of Socrates. He marched with the Spartans, and was exiled from Athens. Sparta gave him land and property in Scillus, where he lived for many years before having to move once more, to settle in Corinth. He died in 354 B.C.

The Apology describes Socrates' state of mind at his trial and execution, and especially his view that it was better to die before senility set in than to escape execution by humbling himself before an unjust persecution. Xenophon was away at the time, involved in the events of the march of the ten thousand.

PREPARER'S NOTE

This was typed from Dakyns' series, "The Works of Xenophon," a four-volume set. The complete list of Xenophon's works (though there is doubt about some of these) is:

<i>Work</i>	<i>Number of books</i>
<i>The Anabasis</i>	<i>7</i>
<i>The Hellenica</i>	<i>7</i>
<i>The Cyropaedia</i>	<i>8</i>
<i>The Memorabilia</i>	<i>4</i>
<i>The Symposium</i>	<i>1</i>
<i>The Economist</i>	<i>1</i>
<i>On Horsemanship</i>	<i>1</i>
<i>The Sportsman</i>	<i>1</i>
<i>The Cavalry General</i>	<i>1</i>
<i>The Apology</i>	<i>1</i>
<i>On Revenues</i>	<i>1</i>
<i>The Hiero</i>	<i>1</i>
<i>The Agesilaus</i>	<i>1</i>
<i>The Polity of the Athenians and the Lacedaemonians</i>	<i>2</i>

Text in brackets "{}" is my transliteration of Greek text into English using an Oxford English Dictionary alphabet table. The diacritical marks have been lost.

Footnotes

THE APOLOGY OF SOCRATES [1](#)

Among the reminiscences of Socrates, none, as it seems to me, is more deserving of record than the counsel he took with himself [2](#) (after being cited to appear before the court), not only with regard to his defence, but also as to the ending of his life. Others have written on this theme, and all without exception have touched upon [3](#) the lofty style of the philosopher, [4](#) which may be taken as a proof that the language used by Socrates was really of that type. But none of these writers has brought out clearly the fact that Socrates had come to regard death as for himself preferable to life; and consequently there is just a suspicion of foolhardiness in the arrogance of his address. [5](#) We have, however, from the lips of one of his intimate acquaintances, Hermogenes, [6](#) the son of Hipponicus, an account of him which shows the high demeanour in question to have been altogether in keeping with the master's rational purpose. [7](#) Hermogenes says that, seeing Socrates discoursing on every topic rather than that of his impending trial, he roundly put it to him whether he ought not to be debating the line of his defence, to which Socrates in the first instance answered: "What! do I not seem to you to have spent my whole life in meditating my defence?" And when Hermogenes asked him, "How?" he added: "By a lifelong persistence in doing nothing wrong, and that I take to be the finest practice for his defence which a man could devise." Presently reverting to the topic, Hermogenes demanded: "Do you not see, Socrates, how often Athenian juries [8](#) are constrained by arguments to put quite innocent people to death, and not less often to acquit the guilty, either through some touch of pity excited by the pleadings, or that the defendant had skill to turn some charming phrase?" Thus appealed to, Socrates replied: "Nay, solemnly I tell you, twice already I have essayed to consider my defence, and twice the divinity [9](#) hinders me"; and to the remark of Hermogenes, "That is strange!" he answered again: "Strange, do you call it, that to God it should seem better for me to die at once? Do you not know that up to this moment I will not concede to any man to have lived a better life than I have; since what can exceed the pleasure, which has been mine, of knowing [10](#) that my whole life has been spent holily and justly? And indeed this verdict of self-

approval I found re-echoed in the opinion which my friends and intimates have formed concerning me. [11](#) And now if my age is still to be prolonged, [12](#) I know that I cannot escape paying [13](#) the penalty of old age, in increasing dimness of sight and dulness of hearing. I shall find myself slower to learn new lessons, and apter to forget the lessons I have learnt. And if to these be added the consciousness of failing powers, the sting of self-reproach, what prospect have I of any further joy in living? It may be, you know," he added, "that God out of his great kindness is intervening in my behalf [14](#) to suffer me to close my life in the ripeness of age, and by the gentlest of deaths. For if at this time sentence of death be passed upon me, it is plain I shall be allowed to meet an end which, in the opinion of those who have studied the matter, is not only the easiest in itself, but one which will cause the least trouble to one's friends, [15](#) while engendering the deepest longing for the departed. For of necessity he will only be thought of with regret and longing who leaves nothing behind unseemly or uncomfortable to haunt the imagination of those beside him, but, sound of body, and his soul still capable of friendly repose, fades tranquilly away."

"No doubt," he added, "the gods were right in opposing me at that time (touching the inquiry, what I was to say in my defence), [16](#) when you all thought the great thing was to discover some means of acquittal; [17](#) since, had I effected that, it is clear I should have prepared for myself, not that surcease from life which is in store for me anon, but to end my days wasted by disease, or by old age, on which a confluent stream of evil things most alien to joyousness converges." [18](#)

"No," he added, "God knows I shall display no ardent zeal to bring that about. [19](#) On the contrary, if by proclaiming all the blessings which I owe to god and men; if, by blazoning forth the opinion which I entertain with regard to myself, I end by wearying the court, even so will I choose death rather than supplicate in servile sort for leave to live a little longer merely to gain a life impoverished in place of death."

It was in this determination, Hermogenes states, that, when the prosecution accused him of not recognising the gods recognised by the state, but introducing novel divinities and corrupting the young, Socrates stepped forward and said: "In the first place, sirs, I am at a loss to imagine on what ground [20](#) Meletus asserts that I do not recognise the gods which are recognised by the state, since, as far as sacrificing goes, the rest of the

world who have chanced to be present have been in the habit of seeing me so engaged at common festivals, and on the public altars; and so might Meletus himself, if he had wished. And as to novel divinities, how, pray, am I supposed to introduce them by stating that I have a voice [21](#) from God which clearly signifies to me what I ought do do? Why, what else do those who make use of the cries of birds or utterances of men draw their conclusions from if not from voices? Who will deny that the thunder has a voice and is a very mighty omen; [22](#) and the priestess on her tripod at Pytho, [23](#) does not she also proclaim by voice the messages from the god? The god, at any rate, has foreknowledge, and premonishes those whom he will of what is about to be. That is a thing which all the world believes and asserts even as I do. Only, when they describe these premonitions under the name of birds and utterances, tokens [24](#) and soothsayers, I speak of a divinity, and in using that designation I claim to speak at once more exactly and more reverentially than they do who ascribe the power of the gods to birds. And that I am not lying against the Godhead I have this as a proof: although I have reported to numbers of friends the counsels of heaven, I have never at any time been shown to be a deceiver or deceived."

As they listened to these words the judges murmured their dissent, some as disbelieving what was said, and others out of simple envy that Socrates should actually receive from heaven more than they themselves; whereupon Socrates returned to the charge. "Come," he said, "lend me your ears while I tell you something more, so that those of you who choose may go to a still greater length in refusing to believe that I am thus highly honoured by the divine powers. Chaerephon [25](#) once, in the presence of many witnesses, put a question at Delphi concerning me, and Apollo answered that there was no human being more liberal, or more upright, or more temperate than myself." And when once more on hearing these words the judges gave vent, as was only natural, to a fiercer murmur of dissent, Socrates once again spoke: "Yet, sirs, they were still greater words which the god spake in oracle concerning Lycurgus, [26](#) the great lawgiver of Lacedaemon, than those concerning me. It is said that as he entered the temple the god addressed him with the words: 'I am considering whether to call thee god or man.' Me he likened not indeed to a god, but in excellence [27](#) preferred me far beyond other men."

"Still I would not have you accept this even on the faith of the god too rashly; rather I would have you investigate, point by point, what the god has

said. I ask you, is there any one [28](#) else, you know of, less enslaved than myself to the appetites [29](#) of the body? Can you name another man of more independent spirit than myself, seeing that I accept from no one either gifts or pay? Whom have you any right to believe to be more just [30](#) than one so suited with what he has, that the things of others excite no craving in him? [31](#) Whom would one reasonably deem wise, rather than such a one as myself, who, from the moment I began to understand things spoken, [32](#) have never omitted to inquire into and learn every good thing in my power? And that I laboured not in vain, what more conclusive evidence than the fact that so many of my fellow-citizens who make virtue their pursuit, and many strangers also, choose my society in preference to that of others? [33](#) And how are we to explain the fact that though all know well enough that I am wholly unable to repay them in money, so many are eager to present me with some gift? [34](#) And what do you make of this—while no one dreams of dunning me for benefits conferred, hosts of people acknowledge debts of gratitude to myself? And what of this, that during the siege, [35](#) while others were pitying themselves [36](#) I lived in no greater straits than when the city was at the height of her prosperity? and of this, that while others provide themselves with delicacies [37](#) of the market at great cost, mine are the dainties of the soul more sweet than theirs, [38](#) procured without expense? If in all I have said about myself no one can convict me of lying, is it not obvious that the praise I get from gods and men is justly earned? And yet in spite of all, Meletus, you will have it that by such habits I corrupt the young. We know, I fancy, what such corrupting influences are; and perhaps you will tell us if you know of any one who, under my influence, has been changed from a religious into an irreligious man; who, from being sober-minded, has become prodigal; from being a moderate drinker has become a wine-bibber and a drunkard; from being a lover of healthy honest toil has become effeminate, or under the thrall of some other wicked pleasure."

"Nay, bless my soul," exclaimed Meletus, "I know those whom you persuaded to obey yourself rather than the fathers who begat them." [39](#)

"I admit it," Socrates replied, "in the case of education, for they know that I have made the matter a study; and with regard to health a man prefers to obey his doctor rather than his parents; in the public assembly the citizens of Athens, I presume, obey those whose arguments exhibit the soundest wisdom rather than their own relations. And is it not the case that, in your choice of generals, you set your fathers and brothers, and, bless me!

your own selves aside, by comparison with those whom you believe to be the wisest authorities on military matters?"

"No doubt, Socrates," replied Meletus, "because it is expedient and customary so to do."

"Well then," rejoined Socrates, "does it not strike even you, Meletus, as wonderful when in all ordinary concerns the best people should obtain, I do not say only an equal share, but an exclusive preference; but in my case, simply because I am selected by certain people as an adept in respect of the greatest treasure men possess—education, I am on that account to be prosecuted by you, sir, on the capital charge?"

Much more than this, it stands to reason, was urged, whether by himself or by the friends who advocated his cause. [40](#) But my object has not been to mention everything that arose out of the suit. It suffices me to have shown on the one hand that Socrates, beyond everything, desired not to display impiety to heaven, [41](#) and injustice to men; and on the other, that escape from death was not a thing, in his opinion, to be clamoured for importunately—on the contrary, he believed that the time was already come for him to die. That such was the conclusion to which he had come was made still more evident later when the case had been decided against him. In the first place, when called upon to suggest a counter-penalty, [42](#) he would neither do so himself nor suffer his friends to do so for him, but went so far as to say that to propose a counter-penalty was like a confession of guilt. And afterwards, when his companions wished to steal him out of prison, [43](#) he would not follow their lead, but would seem to have treated the idea as a jest, by asking "whether they happened to know of some place outside Attica where death was forbidden to set foot?"

When the trial drew to an end, we are told, the master said: [44](#) "Sirs, those who instructed the witnesses that they ought to perjure themselves and bear false witness against me, alike with those who listened to their instruction, must be conscious to themselves of a deep impiety and injustice. [45](#) But for myself, what reason have I at the present time to hold my head less high than I did before sentence was passed against me, if I have not been convicted of having done any of those things whereof my accusers accused me? It has not been proved against me that I have sacrificed to novel divinities in place of Zeus and Hera and the gods who form their company. I have not taken oath by any other gods, nor named their name.

"And then the young—how could I corrupt them by habituating them to manliness and frugality? since not even my accusers themselves allege against me that I have committed any of those deeds [46](#) of which death is the penalty, such as robbery of temples, [47](#) breaking into houses, selling freemen into slavery, or betrayal of the state; so that I must still ask myself in wonderment how it has been proved to you that I have done a deed worthy of death. Nor yet again because I die innocently is that a reason why I should lower my crest, for that is a blot not upon me but upon those who condemned me.

"For me, I find a certain consolation in the case of Palamedes, [48](#) whose end was not unlike my own; who still even to-day furnishes a far nobler theme of song than Odysseus who unjustly slew him; and I know that testimony will be borne to me also by time future and time past that I never wronged another at any time or ever made a worse man of him, [49](#) but ever tried to benefit those who practised discussion with me, teaching them gratuitously every good thing in my power."

Having so said he turned and went in a manner quite in conformity [50](#) with the words which he had spoken—so bright an air was discernible alike in the glance of his eye, his gesture, and his step.

And when he perceived those who followed by his side in tears, "What is this?" he asked. "Why do you weep now? [51](#) Do you not know that for many a long day, ever since I was born, sentence of death was passed upon me by nature? If so be I perish prematurely while the tide of life's blessings flows free and fast, certainly I and my well-wishers should feel pained; but if it be that I am bringing my life to a close on the eve of troubles, for my part I think you ought all of you to take heart of grace and rejoice in my good fortune."

Now there was a certain Apollodorus, [52](#) who was an enthusiastic lover of the master, but for the rest a simple-minded man. He exclaimed very innocently, "But the hardest thing of all to bear, Socrates, is to see you put to death unjustly." [53](#)

Whereupon Socrates, it is said, gently stroked the young man's head: "Would you have been better pleased, my dear one, to see me put to death for some just reason rather than unjustly?" and as he spoke he smiled tenderly. [54](#)

It is also said that, seeing Anytus [55](#) pass by, Socrates remarked: "How proudly the great man steps; he thinks, no doubt, he has performed some great and noble deed in putting me to death, and all because, seeing him deemed worthy of the highest honours of the state, I told him it ill became him to bring up his son in a tan-yard. [56](#) What a scamp the fellow is! he appears not to know that of us two whichever has achieved what is best and noblest for all future time is the real victor in this suit. Well! well!" he added, "Homer [57](#) has ascribed to some at the point of death a power of forecasting things to be, and I too am minded to utter a prophecy. Once, for a brief space, I associated with the son of Anytus, and he seemed to me not lacking in strength of soul; and what I say is, he will not adhere long to the slavish employment which his father has prepared for him, but, in the absence of any earnest friend and guardian, he is like to be led into some base passion and go to great lengths in depravity."

The prophecy proved true. The young man fell a victim to the pleasures of wine; night and day he never ceased drinking, and at last became a mere good-for-nothing, worthless alike to his city, his friends, and himself. As to Anytus, even though the grave has closed upon him, his evil reputation still survives him, due alike to his son's base bringing-up and his own want of human feeling.

Socrates did, it is true, by his self-laudation draw down upon him the jealousy of the court and caused his judges all the more to record their votes against him. Yet even so I look upon the lot of destiny which he obtained as providential, [58](#) chancing as he did upon the easiest amidst the many shapes of death, [59](#) and escaping as he did the one grievous portion of existence. And what a glorious chance, moreover, he had to display the full strength of his soul, for when once he had decided that death was better for him than life, just as in the old days he had never harshly opposed himself to the good things of life morosely, [60](#) so even in face of death he showed no touch of weakness, but with gaiety welcomed death's embrace, and discharged life's debt.

For myself indeed, as I lay to mind the wisdom of the man and his nobility, I can neither forget him nor, remembering him, forbear to praise him. But if any of those who make virtue their pursuit have ever met a more helpful friend than Socrates, I tender such an one my congratulations as a most enviable man.

Footnotes:

- 1 ([return](#))
[Or, "Socrates' Defence before the Dicasts." For the title of the work see Grote, "H. G." viii. 641; Schneid. ap. L. Dindorf's note {pros tous dikastas}, ed. Ox. 1862, and Dindorf's own note; L. Schmitz, "On the Apology of Socrates, commonly attributed to Xenophon," "Class. Mus." v. 222 foll.; G. Sauppe, "Praef." vol. iii. p. 117, ed. ster.; J. J. Hartman, "An. Xen." p. 111 foll.; E. Richter, "Xen. Stud." pp. 61-96; M. Schanz, "Platos Apologia."]
- 2 ([return](#))
[Or possibly, "his deliberate behaviour."]
- 3 ([return](#))
[Or, "have succeeded in hitting off"; "done full justice to."]
- 4 ([return](#))
[Or, "the magniloquence of the master."]
- 5 ([return](#))
[Or, "so that according to them his lofty speech seems rather foolhardy."]
- 6 ([return](#))
[See "Mem." IV. viii. 4 foll., a passage of which this is either an "ebauchement" or a "rechauffe."]
- 7 ([return](#))
[Or, "the philosopher's cast of thought."]
- 8 ([return](#))
[Dikasteries.]
- 9 ([return](#))
[{to daimonion}.]
- 10 ([return](#))
[{edein}, i.e. at any moment.]
- 11 ([return](#))
[For the phrase {iskhuros agamenos emauton}, cf. "Mem." II. i. 19.]
- 12 ([return](#))
[L. Dindorf cf. Dio Chrys. "Or." 28, {anagke gar auto en probainonti anti men kallistou aiskhrotero gignesthai k.t.l.}]
- 13 ([return](#))
[{apoteleisthai}. In "Mem." IV. viii. 8, {epiteleisthai}.]
- 14 ([return](#))
[Or, "God of his good favour vouchsafes as my protector that I should," etc. For {proxenei} cf. "Anab." VI. v. 14;

Soph. "O. C." 465, and "O. T." 1483; and Prof. Jebb's notes ad loc. "the god's kindly offices grant to me that I should lose my life."]

15 ([return](#))

[Cf. Plat. "Phaed." 66.]

16 ([return](#))

[{te tou logou episkepsei}. Cf. Plat. "Rep." 456 C.]

17 ([return](#))

[Or, if {emin}, transl. "we all were for thinking that the main thing was."]

18 ([return](#))

[Or, "that sink into which a confluent stream of evil humours discharge most incompatible with gaiety of mind." Schneid. conj. {eremon} sc. {geras}.]

19 ([return](#))

[Or, "I will give no helping hand to that."]

20 ([return](#))

[Cf. "Mem." I. i. 2.]

21 ([return](#))

[Cf. Plat. "Apol." 19.]

22 ([return](#))

[Cf. "Anab." III. ii. 11; Aristoph. "Birds," 720.]

23 ([return](#))

[Delphi.]

24 ([return](#))

[Or, "the objects that meet us." See Prof. Jebb ad Theophr. "Ch." xxviii. 5.]

25 ([return](#))

[L. Dindorf cf. Athen. v. 218 E; Hermesianax ap. Athen. xiii. 599 A; Liban. vol. iii. pp. 34, 35; Plat. "Apol." 21 A; Paus. i. 22. 8; Schol. ad Aristoph. "Clouds," 144; Grote, "H. G." viii. 567 foll.]

26 ([return](#))

[See Herod. i. 65:

*{ekeis, o Lukoorge, emon pori pionan neon,
Zeni philos kai pasin 'Olumpia domat' ekhousi
dizo e se theon manteusomai e anthropon.
all' eti kai mallon theon elpomai, o Lukoorge.}*

Cf. Plut. "Lyc." 5 (Clough, i. 89).]

27 ([return](#))

[Or, "gave judgment beforehand that I far excelled."]

28 ([return](#))

[Lit. "whom do you know," and so throughout.]

- 29 ([return](#))
[Cf. Plat. "Phaed." 66 C.]
- 30 ([return](#))
[Or, "so attempered and adjusted." The phrase savours of "cynic." theory.]
- 31 ([return](#))
[Or, "present no temptation to him"; lit. "that he stands in no further need of what belongs to his neighbours."]
- 32 ([return](#))
[{ta legomena}, "the meaning of words and the force of argument."]
- 33 ([return](#))
[{ek panton}. Cf. Thuc. i. 120, {osper kai en allois ek panton protimontai (oi egemones)}, "as they (leaders) are first in honour, they should be first in the fulfilment of their duties" (Jowett).]
- 34 ([return](#))
[The commentators quote Libanius, "Apol." vol. iii. p. 39, {kai dia touto ekalei men Eurulokhos o Kharistios, ekalei de Skopas k Kranonios, oukh ekista lontes, upiskhnoumenoi}. Cf. Diog. Laert. ii. 31, {Kharmidou oiketas auto didontos, in' ap' auton prosodeuoito, oukh eileto}. Cf. id. 65, 74.]
- 35 ([return](#))
[See "Hell." II. ii. 10.]
- 36 ([return](#))
[{oikteirein eautous}. See L. Dind. ad loc. For an incident in point see "Mem." II. vii.]
- 37 ([return](#))
[Plat. "Rep." iii. 404 D, "refinements of Attic confectionery."]
- 38 ([return](#))
[{ek tes psukhes}, possibly "by a healthy appetite." Cf. "Symp." iv. 41. The same sentiment "ex ore Antisthenis." See Joel, op. cit. i. 382; Schanz, Plat. "Apol." p. 88, S. 26.]
- 39 ([return](#))
[Cf. "Mem." I. ii. 49.]
- 44 ([return](#))
[{eipein auton [autos(?)]}, i.e. "according to Hermiogenes."]
- 45 ([return](#))
[Or, "must have a heavy load on their minds in the consciousness of their impiety and injustice."]
- 40 ([return](#))
[{sunagoreuein}, L. and S. cf Thuc. vi. 6, "partisans," viii. 84, "pleaded the case of" (Jowett).]

- 41 ([return](#))
[Or, "laid the greatest stress of not being guilty of impiety";
"attached the greatest importance to the fact that he was
never guilty of impiety."]
- 42 ([return](#))
[{upotimasthai}. See L. Dind. cf. Cic. "Orat." i. 54; the
technical word is {antitimasthai}. Cf. Plat. "Apol." 36 D;
Diog. Laert. ii. 41. These authorities tell a different story.
Why should these stories, if true, as no doubt they were, be
omitted?]
- 43 ([return](#))
[Cf. Plat. "Crit." 44 B.]
- 46 ([return](#))
[Cf. "Mem." I. ii. 62.]
- 47 ([return](#))
[See Plat. "Rep." iii. 413 A.]
- 48 ([return](#))
[Cf. "Mem." IV. viii. 9, 10; ib. IV. ii. 3. See Plat. "Rep." v.
476 D, {exomen ti paramutheisthai auton}; and "Hunting," i.
11. The story of Palamedes is told by Ovid, "Met." xiii. 5.]
- 49 ([return](#))
[Cf. Plat. "Apol." 25 D, {poteron eme eisageis deuro os
diaphtheiron ta tous neous kai poneroterous poiounta ekonta
e akonta}.]
- 50 ([return](#))
[{omologoumenos}. For the use of the word L. Dind. cf.
Diog. Laert. vii. 87, {dioper protos o Zenon en to peri
anthropou phuseos telos eipe to omologoumenos te phusei
zen} (Cicero's "naturae convenienter vivere," L. and S.),
whereas the regular Attic use is different. Cf. "Oec." i. 11,
{kai omologoumenos ge o logos emin khorei} =
"consentanea ratione." "Our argument runs on all-fours."
Plat. "Symp." 186 B, {to nasoun omologoumenos eteron te
kai anomoion esti}, "ut inter omnes convenit."]
- 51 ([return](#))
["Why precisely now?"]
- 52 ([return](#))
[Cf. "Mem." III. xi. 17; Plut. "Cato min." 46 (Clough, iv.
417). See Cobet, "Pros. Xen." s.n.; cf. Plat. "Symp." 173;
"Phaed." 54 A, 117 D; Aelian, "V. H." i. 16; Heges. "Delph."
ap. Athen. xi. 507.]
- 53 ([return](#))
[Diog. Laert. ii. 5. 35, ascribes the remark to Xanthippe, and
so Val. Max. 7. 2, Ext. 1.]
- 54 ([return](#))
[See Plat. "Phaed." 89 B, where a similar action is attributed
to Socrates in the case of Phaedo (his beloved disciple). "He

stroked my head and pressed the hair upon my neck—he had a way of playing with my air; and then he said: 'To-morrow, Phaedo, I suppose that these fair locks of yours will be severed.'"]

55 ([return](#))

[Son of Anthemion. See Plat. "Men." 90 B, {airountai goun auton epi tas megistas arkhas}, Plut. "Alc." 4; id. "Coriol." 14; Aristot. "Ath. Pol." 27, 25, re {to dekazein}; 34, 23. A moderate oligarch; cf. Xen. "Hell." II. iii. 42, 44; Schol. Cod. Clarkiani ad Plat. "Apol." 18 B ap. L. Dind. ad loc.; cf. Diod. xiii. 64.]

56 ([return](#))

[Cf. Plat. "Apol." 23 E.]

57 ([return](#))

[e.g. Patroclus dying predicts the death of Hector who had slain him, "Il." xvi. 851 foll.; and Hector that of Achilles, "Il." xxii. 358 foll. Cf. Cic. "de Div." 1, 30. Plato, "Apol." 39 C, making Socrates thus address his judges: {to de de meta touto epithumo umin khresmodesai, o katapsephisamenoi mou' kai gar eimi ede entautha, en o malist' anthropoi khresmodousin, otan mellosin apothaneisthai}. "And now, O men who have condemned me, I would fain prophesy to you, for I am about to die, and that is the hour at which all men are gifted with prophetic power" (Jowett).]

58 ([return](#))

[Lit. "dear to the gods"; "highly favoured."]

59 ([return](#))

[Cf. Hom. "Od." xii. 341, {pantes men stugeroi thanatoi deiloisi brotoisin}.]

60 ([return](#))

[{prosantes}, i.e. "he faced death boldly as he had encountered life's blessings blandly." "As he had been no stoic to repudiate life's blessings, so he was no coward to," etc.]

*** END OF THE PROJECT GUTENBERG EBOOK THE APOLOGY

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project

Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to

you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the

efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.